

24CHCV02625 24CHCV02625

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C07%2F21%2F2026

Source SHA-256: 904c97fa08dbad03c19e19bf48e189338beb8ebd060b1e3cf0c04863e07a5c9c

Case Number: 24CHCV02625 Hearing Date: July 21, 2026 Dept: F47

Dept. F47

Date: 7/21/26

Case #24CHCV02625

PETITION TO

APPROVE THE COMPROMISE OF CLAIM OF PERSON WITH DISABILITY

Petition filed on 6/26/26.

CLAIMANT: Anthony Javier Alvarado

GAL: Elsa Francisca Navarajo Lopez

DEFENDANTS: Martin Kamenos and William Kamenos

SUMMARY OF FACTS: This action arises out of a motor vehicle collision that occurred on 4/26/23. Claimant was a passenger in a vehicle that was struck by a vehicle driven by Defendant.

As a result of the collision, Claimant suffered contusion of the right forearm, headaches and pain in his neck and back. Claimant received treatment in the emergency room was discharged the same day.

Claimant later had chiropractic treatment over several months. Claimant has completely recovered from his injuries.

SETTLEMENT: Defendants to pay \$75,000.00

ATTORNEY FEES: \$30,000.00

MEDICAL EXPENSES: \$9,283.53 (total); \$193.46

(paid); \$4,564.97 (reduction); \$4,525.10 (to be paid from settlement); \$145.10

(contractual or statutory liens)

COSTS: \$2,435.68

AMOUNT TO BE PAID TO CLAIMANT: \$38,039.22 to be

paid or transferred to a Special Needs Trust

RULING: The hearing on the petition will be

continued for at least 30 days.

First, there is an issue with the service of the petition

on counsel for Defendants. The proof of

service indicates that the petition was electronically served on defense

counsel at: . The email address listed for defense counsel

in eCourt is . However, documents filed by defense counsel

do list

as the electronic address for the firm.

At least, 16 court days before the continued hearing date, Plaintiffs'

counsel must serve the petition, notice of continuance and all supplemental

papers on both of the foregoing email addresses.

Second, it is not clear if the settlement for both

Claimant and the co-plaintiff, who is also Claimant's mother/GAL, is \$75,000.00

total or \$75,000.00 each. Nos.10 and 11

in the petition indicate that each plaintiff is receiving \$75,000.00. However, No.17.c., e. and f. fails to acknowledge counsel is also

representing Elsa Francisca Navarajo Lopez, her settlement and/or receipt of

attorney fees from same. At least 16

court days before the continued hearing date, Plaintiffs' counsel must file and

serve a declaration explaining the foregoing.

Third, the Special Needs Trust where Claimant's funds are

supposed to be paid/transferred has not been reviewed by the Probate Division

as required. (See Petition, Attachment

18b(4) pdf 53-57). LASC Local Rule

4.1115(b) provides:

“When the settlement proposes the establishment of a special needs trust, minor’s trust, or other trust as provided in Probate Code sections 3600 to 3612, the Probate Division must review the terms of the proposed trust. The terms of the trust must include the provisions required in California Rules of Court, rule 7.903, and Local Rule 4.116. To facilitate timely review, a party seeking to establish and fund a trust as part of a petition for approval of a compromise filed in a civil department pursuant to subsection (a)(2) of this rule must, within two court days of the filing of the petition to approve the compromise and trust, lodge with the filing window of the Probate Division at Stanley Mosk Courthouse a physical copy of the face page of the petition to approve the compromise and attach a copy of the proposed trust instrument and the proposed order approving the compromise and trust.”

(emphasis added)

Additionally, the proposed order does not set forth the provisions of the trust in their entirety as required by Local Rule 4.115(c)(2).

The matter has been referred to the Probate Division for review.